



CHAPTER ix

An Act to confirm in accordance with the Statutory Orders (Special Procedure) Act 1945 an order of the Minister of Health under the Water Act 1945 relating to Mid-Northamptonshire. [31st May 1949.]

WHEREAS under the provisions of the Water Act 1945 8 & 9 Geo. 6. the Minister of Health has made an order which is subject c. 42. to special parliamentary procedure and it is expedient that it should be confirmed by Parliament in accordance with subsection (2) of section six of the Statutory Orders (Special Procedure) Act 1945: 9 & 10 Geo. 6. c. 18.

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. The Mid-Northamptonshire Water Board Order 1948 as Order in set out in the schedule to this Act is hereby confirmed and shall have full validity and force. schedule confirmed.

2. This Act may be cited as the Mid-Northamptonshire Water Board Order Confirmation (Special Procedure) Act 1949. Short title.

SCHEDULE

THE MID-NORTHAMPTONSHIRE WATER BOARD ORDER 1948

The Minister of Health in exercise of the powers conferred on him by sections 9 23 and 26 of the Water Act 1945 and of all other powers enabling him in that behalf hereby orders as follows:—

PART I

Preliminary

Citation.

1. This order may be cited as the Mid-Northamptonshire Water Board Order 1948.

Interpretation.

2.—(1) In this order unless the context otherwise requires the following expressions have the respective meanings hereby assigned to them:—

“constituent district” means a district or part of a district mentioned in part I of the first schedule to this order;

“constituent council” means the council of a constituent district;

“the Company” means the Woodford Halse Water Company Limited;

“the Corby Company” means the Corby (Northants) and District Water Company;

“the Board” means the Mid-Northamptonshire Water Board constituted by this order;

“the county council” means the Northampton County Council;

“the Minister” means the Minister of Health;

“the undertaking” means the undertaking for the time being of the Board;

“the existing undertakings” means the water undertakings of such of the constituent councils as are supplying water in any part of the limits of supply and the water undertaking of the Company except so much of any such undertaking as is required for the purpose of supplying water within an area situated outside the limits of supply and includes save so far as they relate to so much of any such undertaking as aforesaid—

(a) all the lands buildings water works water sources of supply machinery mains pipes meters plant spare parts tools apparatus vehicles stores and other real and personal property assets and effects rights powers privileges liabilities and obligations vested in or enjoyed by the said constituent councils or the Company respectively for or in relation to their water undertakings immediately before the appointed day or to which they were then subject for or in relation to those undertakings;

(b) the benefit of all contracts in force on the appointed day in respect of the said undertakings subject to any obligations thereunder;

(c) all registers books of accounts maps plans specifications engineering reports and other documents relating to the said

undertakings (except as regards the undertaking of the Company the minute books of the directors of the Company and other books and papers relating solely to the shareholders in and the constitution of the Company which may be necessary to be retained in the event of the winding up of the Company) :

but does not include (i) any funds money or securities for money of the constituent councils whether invested or in hand other than money or securities for money representing the unexpended balance of any sum borrowed by any of the constituent councils for the purposes of the water undertaking of that council or (ii) any liability or obligation in respect of any sum borrowed as aforesaid except as provided in section 34 of this order ;

“ the Corby distribution system ” means such of the filter stations mains water towers and other works for the distribution or treatment of water of the Corby Company as are situated in the limits of supply and includes so far as they relate to the works above referred to—

- (a) all the lands buildings water machinery pipes meters plant spare parts tools apparatus vehicles stores and other real and personal property assets and effects rights powers privileges liabilities and obligations vested in or enjoyed by the Corby Company exclusively for or in relation to the said works immediately before the appointed day or to which they were then subject for or in relation to the said works ;
- (b) the benefit of all contracts in force on the appointed day in respect of the said works subject to any obligations thereunder ;
- (c) all registers books of accounts maps plans specifications engineering reports and other documents relating to the said works ;

but does not include—

- (i) any of the works authorised by section 21 of the Corby (Northants) and District Water Act 1931 or any work lying between Work No. 1 authorised by that section and the Stanion Lane filter station of the Corby Company or any of the matters mentioned in paragraphs (a) (b) and (c) of this definition so far as they relate to those works ;
- (ii) any funds money or securities for money of the Corby Company whether invested or in hand ;

“ the limits of supply ” means the area consisting of the districts and parts of districts mentioned in part I of the first schedule to this order ;

“ the map ” means the map prepared in sextuplicate sealed with the official seal of the Minister and marked “ Mid-Northamptonshire Water Board Order 1948 ” of which one copy is deposited at the office of the Minister one copy is deposited at the office of the town clerk of the borough of Daventry one copy is deposited at the office of the town clerk of the borough of Kettering one copy is deposited at the office of the town clerk of the borough

PART I
—cont.

of Northampton one copy is deposited at the office of the clerk of the Market Harborough Rural District Council and one copy is deposited at the office of the clerk of the Wellingborough Urban District Council ;

“ the appointed day ” means the first day of July 1949 ;

“ year ” means a year commencing on the first day of April and
“ half year ” means a half year commencing on the first day of April or the first day of October ;

“ statutory borrowing power ” means any power whether or not coupled with a duty of borrowing or continuing on loan or re-borrowing money or of redeeming or paying off or creating or continuing payment of or in respect of any annuity rentcharge rent or other security representing or granted in lieu of consideration money for the time being existing under any enactment but does not include the power to borrow by way of temporary loan or overdraft conferred by paragraph (a) of subsection (1) of section 215 of the Local Government Act 1933 ;

23 & 24 Geo. 5.
c. 51.

“ statutory security ” means any security in which trustees are for the time being authorised by law to invest trust moneys and any mortgage bond debenture debenture stock stock or other security created by a local authority as defined by section 34 of the Local Loans Act 1875 but does not include annuities rentcharges or securities transferable by delivery or any securities of the Board ;

38 & 39 Vict.
c. 83.

“ authorised security ” means any mortgage stock bond or other security which the Board are for the time being authorised to grant create or issue or upon or by means of which the Board are for the time being authorised to raise money ;

“ the Third Schedule ” means the Third Schedule to the Water Act 1945 ;

and any expression to which a meaning is assigned by the Third Schedule shall have the meaning so assigned.

(2) The provisions of subsection (1) of section 295 of the Local Government Act 1933 (which provides as to the doing of things which fall to be done on Sundays and public holidays) shall apply for the purposes of this order as if for the reference therein to that Act there were substituted a reference to this order.

(3) Unless the context otherwise requires references in this order to any enactment shall be construed as references to that enactment as amended by any subsequent enactment including this order.

Application of
Third Schedule.

3. The provisions of the Third Schedule specified in column 1 of part I of the third schedule to this order are hereby applied to the undertaking subject after the thirty-first day of March 1954 to the modifications set out in column 2 thereof and shall be incorporated accordingly with this order and so far as may be appropriate for the purposes thereof with any local enactment applied by this order to the Board :

Provided that section 2 of the Third Schedule (which provides as to limits of deviation) shall not apply to any works authorised by a local enactment mentioned in column 1 of part II of the third schedule to this order.

PART II

Construction of works by Northampton Corporation

4. In this part of this order—

“the Corporation” means the mayor aldermen and burgesses of the county borough of Northampton ;

“the Corporation’s undertaking” means the water undertaking of the Corporation as for the time being authorised by any enactment ;

“the Catchment Board” means the River Nene Catchment Board ;

“the river” means the River Nene ;

“the 1944 works” means the intake in the river the pumping station and the line of pipes constructed by the Corporation pursuant to the Northampton Corporation Water Order 1944 and situated on the land described in subsection (5) of section 6 of this order.

Interpretation
of part II.

5. For the purposes of this part of this order the provisions of sections 2 4 6 and 92 to 94 of the Third Schedule shall apply to the Corporation’s undertaking.

Application of
provisions of
Third Schedule
for purposes of
part II.

6.—(1) The Corporation may make and maintain in on or over the land described in this subsection the following works:—

Power to
construct and
maintain works.

Work No. 1—an intake in the river ;

Work No. 2—a pumping station.

The land above referred to is land comprising the enclosures numbered 307 308 and 310 and so much of the enclosures numbered 291 297 and 309 in the parish of Duston on the 1/2500 ordnance map Northamptonshire sheet XLIV-12 (revision of 1937) as lies within an imaginary line commencing at the point on the north-eastern boundary of the said enclosure numbered 297 where that boundary is intersected by the southern side of the public footpath across that enclosure thence proceeding in a southerly direction along the said boundary to the northern bank of the river thence proceeding in a straight line to a point in the existing fence parallel to the north-westerly side of the flood relief channel forming part of the river 70 feet measured along the said fence from the bank of the river thence proceeding along the said fence to the said bank of the river thence proceeding in a northerly direction along the said bank to a point due east of the south-east corner of the said enclosure numbered 310 and thence in a straight line to the said corner of the said enclosure and thence along the south-westerly boundary of the said enclosures numbered 310 and 307 and thence along the western boundaries of the said enclosure 307 to the Millway thence proceeding in an easterly direction across the Millway and along the southern boundary of the said public footpath to the point of commencement.

(2) The Corporation shall construct the said Work No. 1 and so much of the said Work No. 2 as shall project into or over the mill

PART II
—cont.

head or the bank thereof in such a manner as so far as reasonably possible—

(a) to prevent from falling into the river any debris or other solid matter that would or might obstruct or increase the silt deposit in any part of the mill head or tail race ; and

(b) to avoid cutting damaging or interfering with the bed and banks of the mill head or tail race otherwise than in accordance with plans sections and particulars to be previously submitted by the Corporation to and approved by the Catchment Board ;

and the Corporation shall at their own expense and to the reasonable satisfaction of the Catchment Board make good such banks adjoining the said Work No. 1.

(3) If at any time owing to the construction maintenance or use of the said Work No. 1. or the said Work No. 2 any deposit of solid material occurs in the mill head or tail race or any scouring out of the bed or banks thereof is caused whereby damage is caused to the mill head or tail race the Catchment Board may give notice to the Corporation requiring them to remove any obstruction or carry out such dredging or other remedial works as may be reasonably necessary to make good or mitigate such damage and if the Corporation within the period specified in the notice fail to execute the works or take the action specified in the notice the Catchment Board may themselves execute such works or take such action and the expenses reasonably incurred by the Catchment Board in so doing shall on demand be repaid to them by the Corporation.

(4) Subject to the provisions of this order the Corporation may after the acquisition of the land described in subsection (1) of this section continue and maintain and reconstruct enlarge alter and renew the existing weir thereon across the river :

Provided that the Corporation shall not at any time reconstruct enlarge or alter the said weir otherwise than in accordance with plans sections and particulars to be previously submitted by the Corporation to and approved by the Catchment Board.

(5) The Corporation may on land comprising the enclosures numbered 128 141 148 and 149 in the parish of Chapel Brampton on the 1/2500 ordnance map Northamptonshire sheet XXXVII—8 (edition of 1900) continue and maintain and reconstruct enlarge alter and renew the 1944 works :

Provided that the Corporation shall not at any time reconstruct enlarge or alter the intake forming part of the 1944 works otherwise than in accordance with plans sections and particulars to be previously submitted by the Corporation to and approved by the Catchment Board.

(6) The works mentioned in this section shall for all purposes be deemed to form part of the Corporation's undertaking.

Power to take water from river. 7.—(1) Subject to the provisions of this order the Corporation may take water from the river by means of the intake (Work No. 1)

12 & 13 GEO. 6 *Mid-Northamptonshire*
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authorised by the last foregoing section and by means of the 1944 works for the purposes of the Corporation's undertaking:

PART II
—cont.

Provided that—

(a) until the bringing into use of the Pitsford Reservoir (Work No. 1 authorised by the Northampton Corporation Act 1943) ^{6 & 7 Geo. 6. c. xv.} the Corporation shall not take water from the river by means of Work No. 1 authorised by the last foregoing section;

(b) the Corporation shall not take any water from the river—

(i) by means of the said Work No. 1 during the period beginning on the first day of May and ending on the thirtieth day of September in any year;

(ii) by means of the 1944 works during the period beginning on the first day of April and ending on the thirtieth day of September in any year.

(2) Subsections (3) to (5) and (7) of section 10 of the Third Schedule are hereby incorporated with this part of this order subject to the modifications—

(a) that in paragraph (b) of subsection (4) the words “subsection (1) or” and the words from “or fail” to the end of the paragraph and in subsection (5) the words “and the discharge of water into” shall be omitted;

(b) that until the bringing into use of the Pitsford Reservoir subsection (3) shall have effect as if the words “and the flow of the stream” and the words from “or while the flow” to the end were omitted.

(3) The authorised quantity for the purposes of the said section 10 shall be—

(a) in the case of the said Work No. 1 twenty million gallons in a day of twenty-four hours;

(b) in the case of the 1944 works four million three hundred thousand gallons in such a day as aforesaid:

Provided that if having regard to the state of the river the Catchment Board and the Corporation agree or in case of dispute it is determined by the Minister and the Minister of Agriculture and Fisheries that a smaller quantity than that specified in paragraph (a) of this subsection being a quantity not less than sixteen million gallons should be substituted for that specified in that paragraph that smaller quantity shall be so substituted during such period as may be so agreed or in case of dispute so determined.

(4) The prescribed flow for the purposes of the said section 10 shall be—

(a) in the case of the said Work No. 1 a flow of seven million five hundred thousand gallons in twenty-four hours;

(b) in the case of the 1944 works a flow of two million five hundred thousand gallons in twenty-four hours.

PART II
—cont.

(5) The Northampton Corporation Water Order 1944 is hereby repealed.

Maintenance of
existing sluice
and weir.

8.—(1) The Corporation shall after they have acquired the land described in subsection (1) of section 6 of this order maintain at Duston Mill an opening with a sluice gate of a width of not less than six feet constructed in such a manner as to allow an uninterrupted flow of water through a channel past the said mill and may reconstruct enlarge or alter the said opening and sluice gate in accordance with plans sections and particulars to be previously submitted by the Corporation to and approved by the Catchment Board.

(2) The Corporation shall operate the said sluice gate in accordance with the reasonable requirements of the Catchment Board at any time when—

- (a) under the provisions of this part of this order they are not permitted to take water from the river ; or
- (b) the flow of water immediately above Duston Mill is in excess of twenty-seven million five hundred thousand gallons in twenty-four hours :

Provided that nothing in paragraph (b) of this subsection shall enable the Catchment Board to require the Corporation to do anything which would prevent them from taking such quantity of water as for the time being they are authorised to take under this part of this order or render the Corporation liable to claims for compensation by other riparian owners.

(3) The Catchment Board shall maintain in proper working and watertight condition the sluice gate on the weir above Duston Mill leading into the flood relief channel of the river :

Provided that they shall not otherwise than in accordance with plans sections and particulars to be previously submitted by them to and approved by the Corporation reconstruct enlarge alter or renew the said weir or sluice gate in such a manner as to permit water from the river to pass over the weir when the level of the water in the river immediately above the weir is below the level of 200.5' above Newlyn datum.

(4) If at any time water from the river is passing the said weir when the level of the water in the river immediately above the weir is below the level of 200.5' above Newlyn datum the Corporation may give notice to the Catchment Board requiring them to remedy such conditions and if within forty-eight hours of such notice the conditions are not remedied the Corporation their contractors agents workmen or servants or any person in the employ of them or any of them may enter upon the property of the Catchment Board and carry out such remedial works as may in the opinion of the engineer of the Corporation be reasonably necessary.

(5) The reasonable expenses incurred by the Corporation under the last foregoing subsection shall be repaid to the Corporation by the Catchment Board.

PART II
—cont.

9.—(1) Where under this part of this order plans sections and particulars are required to be submitted by the Corporation to and approved by the Catchment Board or submitted by the Catchment Board to and approved by the Corporation such plans sections and particulars shall be deemed to have been approved unless within six weeks after the submission thereof the Catchment Board or the Corporation as the case may be intimate in writing to the other of them their objection thereto and the reasons therefor. As to submission of plans etc.

(2) Where under this part of this order plans sections and particulars are required to be submitted as aforesaid the approval of the Catchment Board or the Corporation as the case may be shall not be unreasonably withheld and any question as to whether such approval is unreasonably withheld shall be determined by arbitration.

10. Any question which may arise under this part of this order between the Corporation and the Catchment Board shall be referred to an arbitrator to be appointed by the Corporation and the Catchment Board or in default of agreement by the President of the Institution of Civil Engineers. Arbitration.

PART III

Constitution of Board

11.—(1) For the purposes hereinafter mentioned there shall be a joint board constituted as provided by this order. Incorporation of Board.

(2) The joint board shall be a body corporate by the name of the Mid-Northamptonshire Water Board and shall have perpetual succession and a common seal and power to hold land for the purposes of their constitution without licence in mortmain.

(3) The purposes above referred to are—

- (a) the procuring of a supply of water and the distribution thereof in the limits of supply or in any area outside the limits of supply in which the Board may be authorised for the time being to supply water otherwise than in bulk ;
- (b) the supplying of water in bulk within or outside the limits of supply ; and
- (c) the doing of all things necessary for connected with incidental to or consequent upon the powers rights duties capacities and liabilities exercisable by or attaching to the Board.

12.—(1) The Board shall consist of thirty-four members each of whom shall be a member of the council by whom he shall have been elected. Constitution of Board.

(2) The number of members of the Board to be elected by each constituent council and the county council shall be the number set opposite the name of their district or county in column 2 of part II of the first schedule to this order.

(3) Each constituent council and the county council shall at a meeting to be held before the appointed day elect the number of members of the Board so to be elected by them and the members so elected shall come into office on the appointed day.

PART III
—cont.

(4) The date of retirement of the first members of the Board shall be the thirtieth day of June 1950.

(5) Any vacancy other than a casual vacancy in the representation of a council on the Board shall be filled by that council at a meeting on or before the date on which the vacancy will occur.

(6) Every member of the Board elected under the last foregoing subsection shall come into office on the first day of July and shall hold office subject to the provisions of this order for a period of one year.

(7) The clerk of each constituent council and of the county council shall forthwith after the election of any member of the Board by that council notify the name address and description of the member elected—

(a) in the case of a first election under this order to the town clerk of the borough of Northampton ;

(b) in the case of a subsequent election to the clerk of the Board.

Tenure of office.

13.—(1) Except as in this order otherwise provided a member of the Board shall hold office until the date on which his successor comes into office.

(2) A member of the Board who ceases to be a member of the council by whom he was elected or otherwise becomes disqualified shall thereupon cease to be a member of the Board :

Provided that a member of the Board shall not be deemed to have ceased to be a member of the council by whom he was elected if on or before the day on which he goes out of office he has been re-elected a member of that council.

(3) A member of the Board may resign his membership by sending to the clerk of the Board notice in writing of his desire to do so, and thereupon a casual vacancy shall be deemed to have arisen and the clerk of the Board shall forthwith notify the clerk of the council by whom the member had been appointed of the vacancy.

(4) Any casual vacancy in the membership of the Board occurring more than two months before the ordinary date of retirement from the office in which the vacancy occurs shall be filled as soon as practicable by the election by the council in whose representation the vacancy arises of a new member and the person so elected shall come into office upon his election and shall hold office during the remainder of the term of office of the person in whose place he is elected.

(5) Sections 58 59 63 and 76 of the Local Government Act 1933 shall apply to the Board as if the Board were a local authority other than a parish council.

Appointment
of deputies.

14. A constituent council may nominate a member of that council as deputy for any representative elected by them and a person so nominated as deputy for a representative may attend any meetings of the Board which that representative is unable to attend and may vote thereat.

PART III
—cont.

15. The meetings and proceedings of the Board shall be conducted in accordance with the rules set forth in the second schedule to this order. Meetings and proceedings.

16.—(1) The Board may appoint committees composed of their members for the exercise of any functions which in the opinion of the Board can be properly exercised by committees but the acts of every such committee shall unless otherwise directed by the Board be submitted to the Board for approval : Committees.

Provided that a committee so appointed shall not be authorised to borrow money or to issue any precept for contributions.

(2) The provisions of section 96 of the Local Government Act 1933 shall apply to the Board as if the Board were a local authority.

17.—(1) The Board shall appoint a clerk and a treasurer and may appoint such other officers and servants as they think requisite : Appointment and remuneration of officers.

Provided that no person who is or within twelve months previously was a member of the Board or any constituent council may be appointed an officer of the Board.

(2) The Board may pay their clerk treasurer and other officers and servants such reasonable remuneration as they deem expedient and every such clerk treasurer officer and other servant shall be removable by the Board at their pleasure.

PART IV

Transfer of undertakings and powers of Board

18.—(1) Subject to the provisions of this order on the appointed day the existing undertakings and the Corby distribution system shall by virtue of this order be transferred to and vest in the Board. Transfer of undertakings.

(2) The Board may subject to the provisions of this order maintain and enlarge any works vested in them as aforesaid.

19.—(1) The Board shall pay to the Company as compensation for the transfer of the undertaking of the Company and to the Corby Company as compensation for the transfer of the Corby distribution system such sums as may be agreed between the Board and the Company or the Board and the Corby Company as the case may be or in default of agreement may be determined by arbitration. Compensation for transfer of Corby and Woodford Halse undertakings and or transferred stores.

(2) Any sums payable under the last foregoing subsection shall be payable—

(a) if the sum is agreed on the appointed day ;

(b) if the sum is determined by arbitration within one month of the date of the arbitration award.

(3) If any sum payable as aforesaid is not paid on the date provided by the last foregoing subsection the Board shall pay interest thereon until the date of payment at the rate of two and a half per cent. per annum.

(4) The Board shall on the appointed day pay to each of the constituent councils an amount equal to the book value of all

PART IV
—cont.

expendable stores which immediately prior to the first day of April 1949 were held on revenue account by that council for the purposes of their existing undertaking.

(5) The payment of any sum payable under this section shall be a purpose for which the Board may borrow money.

(6) The receipt in writing of the secretary of the Company or the secretary of the Corby Company as the case may be shall be a full and sufficient discharge to the Board for the payment of any sum payable under this section.

Application of
enactments.

20.—(1) As from the appointed day the local enactments mentioned in column 1 of part II of the third schedule to this order and the provisions of part II of this order shall apply to the Board and shall have effect thereafter as if for references to the undertakers therein mentioned there were substituted (unless the context otherwise requires) references to the Board and as if such further modifications as are specified in column 2 of part II of the said schedule were made therein:

Provided that no such local enactment other than section 67 of the Northampton Corporation Act 1943 shall by virtue of this subsection apply to any area to which it did not apply immediately before the appointed day.

(2) For the purposes of their functions under this order the Board are hereby invested with all the functions rights and liabilities of a local authority under the provisions of the Local Government Act 1933 mentioned in part III of the third schedule to this order and subject to the provisions of this order those enactments shall apply to the Board accordingly with any necessary modifications as if the limits of supply were their district.

Delegation of
Board's powers.

21. During the period of three years beginning with the appointed day the Board may by agreement with any constituent council delegate to that council with or without restrictions or conditions any powers exercisable by the Board with respect to the management and carrying on of the whole or any part of the water undertaking of that council which is transferred by this order to the Board or of any other undertaking so transferred which lies wholly or in part within the district of that council.

Recovery and
apportionment
of debts.

22. Each constituent council may recover all rates rents profits and sums of money and shall discharge and pay all outgoing and liabilities in respect of so much of their water undertaking as is transferred by this order to the Board which may accrue due up to or shall have accrued due or become payable before the appointed day and the Board may recover all rates rents profits and sums of money and shall discharge and pay all outgoing and liabilities in respect of the existing undertakings which shall accrue due or become payable on or after that day and where necessary for the purpose of this section all revenues and outgoing shall be apportioned between the constituent councils and the Board:

Provided that so much of the water rates water rents meter rents deposits or other charges received by a constituent council as is attributable to any period beginning on or after the first day of April 1949 shall be paid by the council to the Board and so much

of all rates rents profits and sums of money received by the Board in respect of the existing undertaking of a constituent council as is attributable to the period prior to that day shall be paid by the Board to the constituent council.

PART IV
—cont.

23. A constituent council in carrying on their water undertaking until the appointed day shall not so far as regards so much thereof as is transferred to the Board by this order without the previous consent of the county council—

Carrying on of
existing
undertaking
until appointed
day.

- (a) enter into any contract or incur any liability otherwise than in the ordinary course of carrying on their undertaking extending beyond the appointed day or make any unnecessary or exceptional expenditure ;
- (b) increase the remuneration salaries or emoluments of their officers or servants in connection with the undertaking beyond their usual remuneration salaries or emoluments.

PART V

Water supply

24.—(1) During the period beginning on the appointed day and ending on the date when the Board are in a position to supply water from the Pitsford Reservoir (being Work No. 1 authorised by the Northampton Corporation Act 1943) the Corby Company shall supply to the Board at such point or points as may be agreed or failing agreement directed by the Minister such quantity of water as the Board shall require not being a greater quantity than one and three-quarter million gallons a day:

Provision as
to Corby
undertaking.

Provided that if at any time the quantity of water available to the Corby Company shall be insufficient to meet the reasonable requirements of the Company's industrial consumers and the requirements of this subsection the quantity of water to which the Board are entitled under this subsection shall be reduced by such amount as the Minister may direct.

(2) The Board shall pay to the Corby Company for all water supplied in pursuance of this section at such rate as may be agreed or failing agreement determined by arbitration.

(3) The Company shall take all reasonable care in the control of the Eye Brook reservoir to ensure that the water to be supplied to the Board under subsection (1) of this section shall be in such condition that water suitable for supply for domestic purposes can be produced at the Stanion Lane filter station so long as the quantity taken does not exceed the designed capacity of the filter station for the time being.

(4) As from the appointed day the Corby (Northants) and District Water Act 1931 shall have effect subject to the following amendments :—

- (a) the following provision shall be inserted at the end of subsection (2) of section 3 :—

“ For the purposes of the provisions of the said Act of 1847 with respect to the breaking up of streets for the purpose of laying pipes the areas described in the Schedule to this Act shall be deemed to be the limits of supply ” ;

PART V
—cont.

(b) in section 4 the definition of “the limits of supply” shall be omitted;

(c) in section 6 the words “and for carrying on the business usually carried on by water companies” shall be omitted;

(d) the following section shall be substituted for section 63:—

“63. The Company may supply water for any purpose on such terms and conditions as they think fit within the areas described in the Schedule to this Act to Messrs. Stewarts and Lloyds Limited and their associated companies and other companies operating in conjunction with their Corby works.”

Water charges.

26 Geo. 5. &
1 Edw. 8. c. 49.

25.—(1) During the period beginning on the appointed day and ending on the thirty-first day of March 1954 the charges for a supply of water for any purpose in any area in the limits of supply shall be the charges which under the local enactments relating to the supply of water in that area or under the Public Health Act 1936 were in force in relation to a supply for that purpose in that area on the thirty-first day of March 1949 except that no charge shall be made in respect of any water-closet or bath in addition to the rates charged for a supply of water for domestic purposes.

(2) After the period mentioned in the last foregoing subsection for the purposes of the provisions of Part XII of the Third Schedule applied by this order—

(a) the annual sum chargeable under subsection (1) of section 48 of the said schedule shall be twenty shillings;

(b) the maximum charge for a supply of water by meter shall be three shillings per thousand gallons.

(3) After the period mentioned in subsection (1) of this section the charges made by the Board to any person who takes a supply of water by meter shall be reduced by an amount equal to such portion of the general rate (if any) payable by him to a constituent council in respect of the premises to which the water is so supplied for the period for which the charges are due as is attributable to any precept issued by the Board under the provisions of section 29 of this order.

Levying and
recovery of
water charges
by constituent
councils.

26.—(1) The charges which under this order may be made for a supply of water (other than a supply of water in bulk) in the limits of supply shall if the Board so require in relation to any constituent district be levied and recovered by the council thereof and accordingly references to the undertakers in the provisions of Part XII of the Third Schedule applied by this order shall unless the context otherwise requires be construed in a case where a constituent council are required for the time being to levy and recover charges as aforesaid as references to that council.

(2) The Board shall allow any constituent council who are for the time being required to levy and recover charges as aforesaid to retain out of such charges an amount equal to four per cent. of the charges so levied and recovered or such other amount as may be agreed between the Board and the constituent councils as payment for the costs of the collection thereof.

PART VI

Financial provisions

27. Except as otherwise expressly provided by this order all the receipts of the Board shall be carried to a common fund and all expenses incurred by the Board shall be defrayed out of that fund. Common fund
of Board.

28. All orders for payment from any fund of the Board shall be signed by at least two members of the Board and shall be countersigned by the clerk of the Board or in his absence or inability by such other officer as the Board may authorise for that purpose. Payments out of
funds of Board.

29.—(1) As soon as may be after the appointed day the Board shall make or cause to be made estimates of their probable revenue and expenditure (other than capital expenditure) in respect of the financial year ending on the thirty-first day of March 1950. Apportionment
of deficiency
in revenue of
Board.

(2) Before the commencement of any subsequent financial year the Board shall make or cause to be made estimates of their probable revenue and expenditure (other than capital expenditure) during the year including any credit or debit balance carried forward from any previous year.

(3) If the estimates made under either of the last two foregoing subsections show that the expenditure will exceed the revenue the Board shall forthwith apportion the sum required to meet the deficiency in revenue among the constituent councils—

(a) in respect of any year up to and including that ending on the thirty-first day of March 1954—

(i) firstly to the extent of an amount equivalent to the total standard deficiency in the proportion which the standard deficiencies of the several constituent councils bear to the total standard deficiency ; and

(ii) secondly in respect of any remaining deficiency in proportion to the product of a penny rate in the several constituent districts ;

(b) in respect of any year after the expiration of the said period in proportion to the product of a penny rate in the several constituent districts.

(4) The Board shall as soon as may be after the appointed day and before the commencement of the second and each subsequent financial year issue to each of the constituent councils a precept for a sum equal to the amount apportioned to that council in pursuance of the last foregoing subsection and each of the constituent councils shall within two months after the commencement of the year or by instalments of such amounts and payable within such times as may be specified in the precept issued to them pay to the Board the sum stated in the precept.

PART VI
—cont.

15 & 16 Geo. 5.
c. 90.

(5) Any sum mentioned in a precept issued under this section by the Board to any constituent council shall be a debt due from that council and may be recovered accordingly without prejudice however to the right of the Board to exercise any powers conferred upon them by section 13 of the Rating and Valuation Act 1925.

(6) For the purposes of this section—

“the product of a penny rate” in relation to a constituent district means the product of a penny rate in that district as estimated for the purposes of subsection (2) of section 9 of the Rating and Valuation Act 1925 ;

“standard deficiency” means in relation to a constituent council the net excess of expenditure over receipts of the water undertaking of that council (or where part only of the undertaking of a council is hereby transferred to the Board so much of the said net excess as is attributable to that part) as shown in the audited accounts of the undertaking for the year ended on the thirty-first day of March 1946 adjusted to give effect to any variation in water rates and charges which shall have been made during and since that year or effected by this order and to any variation in liability for income tax arising from any such variation in water rates and charges but omitting any contributions made to a reserve fund ;

“total standard deficiency” means the aggregate of the standard deficiencies of the constituent councils.

Application of
moneys received
by Board.

30.—(1) All moneys received by the Board in respect of the undertaking including amounts brought forward from any previous year except—

- (a) borrowed money ;
- (b) money arising from the disposal of lands acquired for the purposes of the undertaking ;
- (c) other capital money received by them in respect of the undertaking ; and
- (d) any contribution or contributions made to the Board by the Minister in pursuance of the Rural Water Supplies and Sewerage Act 1944 towards the expenses incurred or to be incurred by the Board on capital account ;

7 & 8 Geo. 6.
c. 26.

shall be applied by them—

firstly in payment of the working and establishment expenses and cost of maintenance of the undertaking including all costs expenses penalties and damages incurred or payable by the Board consequent upon any proceedings by or against them or their officers clerks or servants in relation to the undertaking ;

secondly in payment of the sums referred to in section 34 of this order ;

thirdly in payment of the interest on moneys borrowed by the Board under any statutory borrowing power ;

fourthly in providing the requisite appropriations or sinking fund payments or instalments in respect of the repayment of moneys borrowed by the Board under any statutory borrowing power ;

fifthly in payment of all other expenses of executing this order not being expenses properly chargeable to capital ;

sixthly in extending improving and constructing (if the Board think fit) any works for the purpose of the undertaking ;

seventhly in providing working capital (if the Board think fit) ; and

eighthly in setting apart (if the Board think fit) money for a reserve fund under the next but one following section.

(2) Any credit or debit balance remaining over in any year including any balance brought forward shall be carried forward to the following year.

(3) All capital moneys received by the Board at any time before the establishment of the consolidated loans fund in respect of the disposal of any property forming part of the undertaking shall be applied by them in the reduction of the capital moneys borrowed by them or in such other way as may be approved by the Minister and any such reduction shall be in addition to and not in substitution for any other mode of extinguishment except to such extent and upon such terms as may be approved by the Minister.

31.—(1) Notwithstanding anything contained in any local enactment on and after the appointed day the Board may establish and maintain a fund to be called “the consolidated loans fund” to which shall be paid—

(a) all moneys borrowed by the Board by the issue of authorised securities together with any moneys borrowed without security in connection with the exercise of any statutory borrowing power ;

(b) all moneys of a capital nature received by the Board whether from the sale of capital assets or otherwise except such as are applied by the Board with due authority to another capital purpose ; and

(c) the appropriate sums provided in each year out of other funds of the Board to comply with the terms and conditions as to repayment attaching to their several borrowing powers or otherwise provided for the repayment of debt.

(2) The unapplied balances of all moneys so borrowed or received and of all sums provided by the Board as aforesaid before the date on which the consolidated loans fund is established shall be carried to the credit of the consolidated loans fund.

(3) The moneys of the consolidated loans fund shall be used or applied by the Board—

(a) in the redemption of authorised securities the purchase of bonds or stocks for extinction or the repayment of any moneys borrowed by the Board ; and

PART VI
—cont.

- (b) in the exercise of any statutory borrowing power by transfer of the required amount to the appropriate fund and account of the Board :

And the moneys of the consolidated loans fund which are not used or applied in those ways or are not to be so used or applied within a reasonable period shall be invested in statutory securities and the moneys of the consolidated loans fund shall not except with the consent of the Minister be used or applied otherwise than as provided in this section.

(4) There shall also be transferred to the consolidated loans fund such sums as are necessary to meet interest charges and the financing and other revenue expenses connected with the management of that fund and separate accounts shall be kept of the said sums and their application.

(5) The Board may pay into the consolidated loans fund any moneys forming part of any reserve superannuation or other similar fund (hereinafter respectively referred to as "the lending fund") and not for the time being required for the purposes of the lending fund and any such moneys shall be deemed to be moneys borrowed by the Board within the meaning of subsection (1) of this section and shall be used accordingly subject to the following conditions :—

- (a) the moneys so used shall be repaid to the lending fund as and when required for meeting the obligations for which the lending fund was established ; and
- (b) there shall be paid out of the consolidated loans fund to the common fund of the Board an amount equal to the interest on the moneys so used and for the time being not repaid at such rate per cent. per annum as may be determined by the Board to be equal as nearly as may be to the average rate of interest payable by the Board on their current borrowings and in the accounts of the common fund the like amount (subject to any prescribed limit on the amount of the lending fund) shall be credited to the lending fund.

(6) The powers conferred by this section shall not be put into operation by the Board except in accordance with a scheme to be approved by the Minister and any such scheme may make provision for any matters incidental to the establishment and administration of the consolidated loans fund.

(7) Any scheme approved by the Minister under this section may be altered extended amended or annulled by a scheme made in like manner as the original scheme.

Reserve fund.

32.—(1) The Board may subject to the provisions of this section by setting apart in any year out of revenue such sums as they think fit form and maintain a reserve fund for the purpose of meeting any extraordinary claim or demand which may at any time be made upon them or defraying the cost of renewing repairing enlarging or improving any part of the works forming part of the undertaking.

(2) Any sums so set apart for the formation or maintenance of a reserve fund may from time to time be invested in statutory securities and subject to the provisions of the next following subsection the dividends and interest arising from such securities may also be invested in the same or like securities so as to accumulate at compound interest for the credit of the fund.

(3) Whenever and so long as the amount standing to the credit of the reserve fund amounts to a sum equal to five per cent. of the capital expenditure theretofore incurred by the Board and by the constituent councils upon the undertaking no contributions from the revenue of the undertaking shall be made to the fund and the interest and dividends on the fund shall not be invested but shall be treated as the income of the undertaking.

(4) The amount which subject to the provisions of the last foregoing subsection may be carried by the Board in any year to the formation or maintenance of the reserve fund shall not exceed a sum equal to one-half of one per cent. of the capital expenditure theretofore incurred by the Board and by the constituent councils upon the undertaking.

33.—(1) The accounts of the Board shall at all reasonable times be open to inspection and transcription without payment by any member of a constituent council or the county council or by any officer of any such council authorised by that council for that purpose and shall be subject to audit by a district auditor. Accounts and audit.

(2) A copy of the abstract of the accounts of the Board and of any report to the Board made by a district auditor shall be sent by the Board to each constituent council and to the county council as soon as may be after completion of the audit.

34.—(1) Subject to the provisions of this section the Board shall as consideration for the transfer of the existing undertakings of the constituent councils in every financial year repay to each of the constituent councils a sum equivalent to the net sum (if any) to be expended during that year by that council in the payment of interest upon and for the repayment of money borrowed prior to the appointed day in respect of their undertaking the sum paid into any sinking fund for the repayment of such moneys and reasonable management expenses: Repayment to constituent councils of loan charges.

Provided that any such sum shall unless otherwise agreed be paid by half-yearly payments.

In this subsection "net sum" means the sum (if any) to be expended by a constituent council after deducting therefrom any sum received from the Unemployment Grants Committee in that year by that council in respect of their undertaking.

(2) Any question as to the method of calculating for the purposes of subsection (1) of this section the sum to be expended by or repaid to any constituent council shall be determined by an arbitrator to be

PART VI
—cont.

appointed by agreement between the parties or in default of agreement by the President of the Institute of Municipal Treasurers and Accountants (Incorporated).

(3) Notwithstanding the foregoing provisions of this section the Board may with the consent of the lender agree with a constituent council for the transfer to the Board by that council of any outstanding loan to that council and as from the date upon which any such transfer takes effect all liability in respect of any loan so transferred shall be borne by the Board.

Powers of
constituent
councils to lend
money to Board.

35. A constituent council may with the consent of the Minister lend to the Board any sum which the Board are authorised to borrow on such terms and conditions and in such form as may be agreed between the Board and the council.

PART VII

*Miscellaneous*Compensation
of officers.

36. Any compensation payable to any officer or servant of any constituent council or other statutory water undertakers in consequence of this order or anything done in pursuance of this order shall be payable by the Board.

Saving of
agreements etc.

37. Except as in this order otherwise provided all sales conveyances grants assurances deeds contracts bonds and agreements affecting any of the existing undertakings or the Corby distribution system and in force on the appointed day shall as from the appointed day be read and construed and be as binding and of as full force in every respect against or in favour of the Board and may be enforced as fully and effectually as if instead of the constituent council the Company or the Corby Company as the case may be the Board had been a party thereto or bound thereby or entitled to the benefit thereof.

Continuance of
proceedings.

38. Nothing in this order shall release discharge or suspend any action arbitration or other proceeding which shall be pending by or against any constituent council in relation to their water undertaking or by or against the Company or by or against the Corby Company in relation to the Corby distribution system or to which any of the said bodies in relation as aforesaid shall be a party on the appointed day and any such action arbitration or other proceeding save so far as it relates to any mortgages debentures debenture stock or other similar charges of the Company or the Corby Company or to any sale conveyance grant assurance deed contract bond or agreement not binding on the Board under the last foregoing section or to any tortious act of any servant of any of the said bodies may be maintained prosecuted or continued by or in favour of or against the Board.

*Water Board Order Confirmation
(Special Procedure) Act, 1949*

39. All books and documents which if this order had not been made would have been evidence in respect of any matter for or against any constituent council or the Company or the Corby Company shall in so far as they relate to any of the existing undertakings or to the Corby distribution system on and after the appointed day be admitted in evidence in respect of the same or the like matter for or against the Board.

PART VII
—cont.

Books to remain evidence.

40. The local enactments mentioned in the fourth schedule to this order shall to the extent therein specified be repealed on the appointed day.

Repeal of local enactments.

41. All expenses of and incidental to the constitution of the Board shall be payable by the Board and so far as those expenses are expenses incurred by the Minister the amount thereof as certified by him shall be recoverable by him from the Board as a debt due to the Crown.

Costs of order.

FIRST SCHEDULE

PART I

CONSTITUENT DISTRICTS

The boroughs of Daventry Kettering and Northampton.

The urban districts of Burton Latimer Corby Desborough Rothwell and Wellingborough.

The rural districts of Brixworth Daventry Kettering and Northampton.

In the rural district of Market Harborough so much of the parish of Great Easton as is included in the area shown edged red on the map.

In the rural district of Uppingham so much of the parish of Caldecott as is included in the area shown edged red on the map.

In the rural district of Wellingborough the parishes of Great Harrowden Hardwick Isham Little Harrowden Orlingbury and Sywell.

PART II

1 Name of council	2 No. of members
Daventry Borough Council	1
Kettering Borough Council	4
Northampton Borough Council	8
Burton Latimer Urban District Council	1
Corby Urban District Council	2
Desborough Urban District Council	1
Rothwell Urban District Council	1
Wellingborough Urban District Council	3
Brixworth Rural District Council	2
Daventry Rural District Council	2
Kettering Rural District Council	2
Market Harborough Rural District Council	1
Northampton Rural District Council	2
Uppingham Rural District Council	1
Wellingborough Rural District Council	1
Northampton County Council	2

—
34
—

SECOND SCHEDULE

RULES AS TO MEETINGS AND PROCEEDINGS

1. The first meeting of the Board shall be convened by the town clerk of the borough of Northampton on such day (not being later than the first day of August 1949) and at such place as may be fixed by the mayor of that borough.

2.—(1) The Board shall in every year hold an annual meeting and at least three other meetings for the transaction of general business which as near as may be shall be held at regular intervals.

(2) The first meeting of the Board shall be the annual meeting for the first year and the first meeting of the Board after the first day of July in any subsequent year shall be the annual meeting for that year.

3.—(1) The Board shall at their annual meeting appoint one of their number to be chairman and the chairman shall unless he resigns his office or ceases to be a member of the Board continue in office until his successor is appointed.

(2) The Board may at their annual meeting appoint one of their number to be vice-chairman who shall unless he resigns his office or ceases to be a member of the Board continue in office until immediately after the election of the chairman at the next annual meeting.

4.—(1) On a casual vacancy occurring in the office of chairman or vice-chairman of the Board the vacancy shall be filled by the appointment by the Board of one of their number at a meeting held as soon as practicable after the vacancy occurs and where the office vacant is that of chairman the meeting may be convened by the clerk of the Board.

(2) The person appointed under this rule to fill a casual vacancy shall hold office until the date upon which the person in whose place he is appointed would regularly have retired and he shall then retire.

5.—(1) At a meeting of the Board the chairman if present shall preside.

(2) If the chairman is absent from a meeting of the Board the vice-chairman if present shall preside.

(3) If both the chairman and vice-chairman of the Board are absent such member of the Board as the members present shall choose shall preside.

6.—(1) The chairman of the Board may call a meeting of the Board at any time.

(2) If the chairman refuses to call a meeting of the Board after a requisition for that purpose signed by four members of the Board has been presented to him or if without so refusing the chairman does not call a meeting within seven days after such a requisition has been presented to him any four members of the Board on that refusal or on the expiration of seven days as the case may be may forthwith call a meeting of the Board.

(3) Three clear days at least before a meeting of the Board—

(a) notice of the time and place of the intended meeting shall be published at the offices of the Board and where the meeting is called by members of the Board the notice shall be signed by those members and shall specify the business proposed to be transacted thereat; and

(b) a summons to attend the meeting specifying the business proposed to be transacted thereat and signed by the clerk of the Board shall be left at or sent by post to the usual place of residence of every member of the Board:

Provided that—

- (i) want of service of the summons on any member of the Board shall not affect the validity of a meeting; and
- (ii) no business shall be transacted at a meeting called by members of the Board other than that specified in the notice thereof.

7. No business shall be transacted at a meeting of the Board unless at least twelve members are present thereat.

8. A copy of the minutes of proceedings at each meeting of the Board shall be sent to the clerks of the constituent councils and of the county council within fourteen days after the date of the meeting.

9. The provisions of paragraphs 1 to 5 of Part V of the Third Schedule to the Local Government Act 1933 shall apply to the Board as if the Board were a local authority and as if for references therein to the said Act there were substituted references to this order.

THIRD SCHEDULE

ENACTMENTS APPLIED TO THE BOARD

PART I

1 Provisions of Third Schedule applied	2 Modifications applicable after 31st March 1954
Parts I II and IV to VI Part VII	In section 29— (a) in subsection (1) for the words from “the aggregate amount” to “by the undertakers” there shall be substituted the words “the aggregate amount of such portions of the general rate for the time being payable in a year by those owners and occupiers in respect of those premises as is attributable to any precept issued by the undertakers under the special Act (which aggregate amount is hereafter in this section referred to as “the aggregate amount”)”; (b) after subsection (1) there shall be inserted the following subsection:— “(1A) If in the case of the owners and occupiers of premises in any area the aggregate amount is not sufficient to enable a valid requisition to be made under the last foregoing subsection and the local authority of the district or the local authorities of the districts in which the area is situated undertake that until the aggregate amount reaches a sum which would have enabled such a requisition to be made or until the expiration of a

2ND SCH.
→cont.

3RD SCH.
—cont.

1 Provisions of Third Schedule applied	2 Modifications applicable after 31st March 1954
Part VII—<i>cont.</i>	period of twelve years whichever first occurs they will make good to the undertakers in each year the difference between that sum and the sum of the aggregate amount for that year and any other amount received in respect of water supplied whether for domestic or non-domestic purposes in that year in respect of premises in that area the undertakers shall lay any necessary mains and bring water to that area”; (c) in subsection (2) after the word “last” there shall be inserted the words “but one” after the word “provisions” there shall be inserted the words “or after tender to them of an undertaking which satisfies the provisions of the last foregoing subsection” and after the word “requisition” where it occurs for the second time there shall be inserted the words “or the provisions of the last foregoing subsection as the case may be”. In section 30 in subsection (1) the words “and payment or tender of the water rate” and in subsection (2) the words “during any period in respect of which the water rate therefor has been paid or tendered” shall be omitted.
Parts VIII and IX Part X	In section 40 in paragraph (a) the words from “at or before” to the end of the paragraph shall be omitted. In section 42 in paragraph (b) of subsection (8) for the words “water rate” there shall be substituted the words “general rate”.
Part XI In Part XII sections 48 49 (except subsection (3)) 50 to 52 57 (except subsection (3)) 58 and 59.	In section 48 in subsection (1) the words “and in respect of which they charge a water rate” and the word “additional” and in subsection (2) the word “additional” shall be omitted. In section 51 the words “and in respect of which they charge a water rate” shall be omitted. In section 57 the words “rates and” in both places where they occur shall be omitted. In section 58 the words “rate or” shall be omitted.
Parts XIII XIV and XVI	

12 & 13 GEO. 6 *Mid-Northamptonshire*
Water Board Order Confirmation
(Special Procedure) Act, 1949

Ch. ix

PART II

3RD SCH.
—cont.

1 Local enactments applied	2 Modifications
<i>Corby (Northants) and District Water Act 1931</i> (21 & 22 Geo. 5. c. civ). Sections 97 and 98.	—
<i>Kettering Water Act 1898</i> (61 & 62 Vict. c. cliii). Sections 20 and 21 and the Schedule.	In section 21 the words from “and may sell” to the end of the section shall be omitted.
<i>Kettering Urban District Water Act 1901</i> (1 Edw. 7. c. lxxxv). Sections 5 16 to 19 21 to 23 26 and 27.	In section 5 the words “make construct lay down and” and in subsection (2) of section 17 the words “construct and for ever after” shall be omitted.
<i>Kettering Water Order (No. 2) 1935 made under the Water Supplies (Exceptional Shortage Orders) Act 1934.</i> The whole order.	—
<i>Northampton Waterworks Act 1882</i> (45 & 46 Vict. c. lxxiv). Section 7.	—
<i>Northampton Corporation Waterworks Act 1884</i> (47 & 48 Vict. c. ccviii). Sections 27 29 and 33.	In section 27 the words “make and” and in section 29 the words from “may enter” to “this Act and” shall be omitted.
<i>Northampton Corporation Water Act 1913</i> (3 & 4 Geo. 5. c. xv). Sections 6 to 8 section 9 except subsection (1) sections 12 to 14 and section 16.	In section 6 the words “make and” the words from “and may enter” to “(that is to say)” shall be omitted and in section 12 the words “enter upon take and” and the words “erect make provide lay down and” shall be omitted. Section 16 shall have effect as if it read “The Board may in the case of the sewers authorised by this Act lay down additional sewers to form part of such sewers as and when occasion may require”.

3RD SCH.
—cont.

1 Local enactments applied	2 Modifications
<i>Northampton Corporation Act 1922 (12 & 13 Geo. 5. c. xxv).</i> Section 5 section 17 except subsection (1) and section 27.	Section 5 shall apply only so far as it relates to the pumping stations forming part of Work No. 2 and Work No. 4. In section 27 for the words from “laid down by the Corporation” to “and this Act” there shall be substituted the words “laid down by the Board after the coming into force of the Mid-Northamptonshire Water Board Order 1948 or in relation to the renewal of any mains or pipes laid down by the Corporation prior to the coming into force of the said order under the local enactments relating to the Corporation” subsection (2) shall be omitted and in subsection (5) for the reference to section 32 of the Waterworks Clauses Act 1847 there shall be substituted a reference to section 26 of the Third Schedule.
<i>Northampton Corporation Act 1943 (6 & 7 Geo. 6. c. xv).</i> Sections 5 to 17 19 to 21 23 25 27 to 35 67 103 (except so far as it relates to purpose (d) mentioned therein) 104 105 (so far as it relates to the water undertaking of the Corporation) 106 (so far as aforesaid) and subsections (1) to (4) and (7) of section 126.	In sections 15 and 16 for references to the town clerk there shall be substituted references to the clerk of the Board. In subsection (4) of section 19 for the reference to the provisions of the Waterworks Clauses Act 1847 with respect to mines there shall be substituted a reference to Part IV of the Third Schedule. In proviso (g) to subsection (2) of section 25 for the reference to the provisions of the said Act relating to the breaking up of streets for the purpose of laying pipes there shall be substituted a reference to Part VI of the Third Schedule.
<i>Northampton Water (Compulsory Purchase) Order 1948 confirmed by the Northampton Water Compulsory Purchase Confirmation Order 1949.</i> The whole order.	Section 25 shall not have effect if and so long as an order under section 14 of the Water Act 1945 is in force in relation to the area to which the said section 25 applies.

12. & 13. GEO. 6

Mid-Northamptonshire
Water Board Order Confirmation
(Special Procedure) Act, 1949

Ch. ix

1 Local enactments applied	2 Modifications
Woodford Halse Water Order 1902 (confirmed by 2 Edw. 7. c. clxxxix). Sections 19 to 22.	In section 19 the words from "and they may" to "limits of supply" shall be omitted.

3RD SCH.
—cont.

PART III

Provisions of the Local Government Act 1933 applied	Subject-matter
Subsection (4) of section 107 and sections 119 to 121 and 123.	Officers.
Sections 195 to 200 and 202 to 218 ..	Borrowing.
Sections 253 254 256 and 258	Promotion etc. of Bills.
Section 266	Contracts.
Section 267	Conferences of local authorities.
Sections 277 and 278	Legal proceedings.
Sections 287 to 289	Notices &c.

FOURTH SCHEDULE

LOCAL ENACTMENTS REPEALED

- 46 George 3. c. 118 (being an Act for paving etc. the Town of Daventry).
Section XXXI to XXXVIII.
- Corby (Northants) and District Water Act 1931 (21 & 22 Geo. 5. c. civ).
Sections 29 34 35 53 to 56 58 to 62 64 to 76 95 96 99 124 and 125.
- Corby (Northants) and District Water Act 1934 (24 & 25 Geo. 5. c. xxxiii).
In section 2 subsections (3) and (4).
- Kettering Water Act 1898 (61 & 62 Vict. c. cliii).
The whole Act except sections 1 20 and 21 and the Schedule.
- Kettering Urban District Water Act 1901 (1 Edw. 7. c. clxxxv).
Sections 2 4 6 to 15 20 24 25 and 28 to 58.
- Kettering Water Act 1906 (6 Edw. 7. c. lxxv).
The whole Act.
- Kettering Order 1921 (confirmed by 11 & 12 Geo. 5. c. xix).
Sections 1 to 8 and the remainder of the order so far as it relates to the water undertaking of the Corporation.
- Northampton Waterworks Act 1861 (24 Vict. c. xlvii).
The whole Act.
- Northampton Waterworks Act 1882 (45 & 46 Vict. c. lxxiv).
The whole Act except sections 1 and 7.

4TH SCH.
—cont.

Northampton Corporation Waterworks Act 1884 (47 & 48 Vict. c. ccviii).

Sections 2 4 to 20 22 23 26 28 30 to 32 and 34 to 38 and the First Second and Third Schedules.

Northampton Order 1907 (confirmed by 7 Edw. 7. c. clx).

The whole order except article VI paragraph (2) of article VII and paragraph (2) of article VIII.

Northampton Corporation Water Act 1913 (3 & 4 Geo. 5. c. xv).

Sections 2 4 5 subsection (1) of section 9 and sections 10 11 15 17 to 23 26 to 28 30 to 32 35 38 to 42 44 45 and 47 to 53.

Northampton Corporation Act 1922 (12 & 13 Geo. 5. c. xxv).

Sections 3 6 to 16 18 to 21 26 subsection (1) of section 62 (so far as it relates to purposes (2) and (3)) and sections 63 to 65 (so far as they relate to the water undertaking of the Corporation).

Northampton Corporation Act 1943 (6 & 7 Geo. 6. c. xv).

In subsection (1) of section 3 paragraphs (b) and (c) sections 18 22 24 26 36 (so far as it relates to the water undertaking of the Corporation) 37 to 39 (so far as they relate to land held for the purposes of the water undertaking of the Corporation) 46 to 66 68 to 87 117 123 (so far as it relates to water rates and charges) 125 and subsections (5) and (6) of section 126.

Woodford Halse Water Order 1902 (confirmed by 2 Edw. 7. c. clxxxix).

The whole order except sections 19 to 22.

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